

		regarding theft or trespassing, not physical violence. (Mintz Depo., 23:25-24:16.) Plaintiff also claims having homeless persons on the premises is a factor which should be considered. However, Plaintiff offers no explanation as to how the presence of homeless persons inherently makes the premises dangerous or create a high degree of likelihood that physical violence will occur on the premises. Additionally, Plaintiff has not even established the unidentified person was homeless himself. Thus, it is unclear how this incident is connected to the presence of homeless persons, unless Plaintiff and her counsel are suggesting the presence of homeless persons implicates a high degree of likelihood of violent crime. There are only two other incidents of physical violence that occurred on the premises in the four years leading up to the incident. In first incident, Defendant's employee, Mitchell, told a person he was not allowed to stand in front of the store who became belligerent and told Mitchell he was not going to leave. Mitchell approached the man and the man swung at him with a beer bottle but missed. (Mintz Depo., 27:5:28:6.) In the second incident, a man was instructed to leave because his claimed service animal was not on a leash. The man went to his RV in the parking lot. When Mintz came to collect a shopping cart near the RV, the man threatened Mintz warning he would attack Mintz if he got near. The man shoved Mintz when he came to collect the cart. (Mintz Depo., 29:4-30:2.) In both incidents there were real warning signs of agitation and the employees proceeded in the face of those signs. However, in Plaintiff's case, she was attacked unprovoked. Thus, the incidents are distinct and infrequent. Thus, Plaintiff has failed to demonstrate there was a high degree of foreseeability of criminal conduct which warrants imposing a heightened duty on Defendant to prevent the criminal conduct of the unidentified person. Additionally, even assuming Defendant had a duty to protect Plaintiff, Plaintiff has failed to present any evidence Defendant knew of any of the behavior Plaintiff claims precipitated the attack. Accordingly, summary judgment is proper.
10	25-01466414 <i>Seeds vs. General Motors, LLC</i>	Motion to Compel Deposition (Oral or Written) Defendant General Motors LLC's Motion for Compliance Pursuant To C.C.P. § 871.26 is GRANTED. Defendant moves to compel plaintiff Gary N. Seeds to appear for his initial deposition and for monetary sanctions against Plaintiff's attorneys, Strategic Legal Practices, APC, in the sum of \$1,500. Defendant brings this Motion pursuant Code of Civil Procedure section 871.26, subdivisions (c)(1) and (j)(2), which state: (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

		(1) The plaintiff. ... (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c). . . ” (Civ. Proc. Code § 871.26.) Defendant filed its responsive pleading on 7/11/25. Thus, Defendant had the right to take Plaintiff's initial deposition by 11/7/25. To date, Plaintiff has not complied with section 871.26, subdivision (c)(1). Plaintiff's opposition fails to establish good cause for failing to comply. Plaintiff objected to the initially noticed August 2025 deposition, cancelled the agreed upon February 2026 deposition, failed to respond to Defendant's attempts to reschedule the February 2026 deposition, and failed to inform Defendant that Plaintiff's counsel lost contact with Plaintiff in February 2026. As a result, Defendant was forced to file the instant motion. Plaintiff's counsel had ample opportunity to comply with section 871.26, subdivision (c)(1), before losing contact with Plaintiff in February 2026. Plaintiff's counsel did not file a motion to be relieved as counsel until 7/30/26, which is not scheduled for hearing until 3/4/27. Plaintiff's counsel should have informed Defendant that they lost contact with Plaintiff and filed their motion to be relieved closer to February when they lost contact. Doing so likely would have avoided the need to file the instant motion. The motion is granted. Plaintiff is ordered to appear at the initial deposition as outlined in Code of Civil Procedure section 871.26 within 10 calendar days. Plaintiff's counsel is ordered to pay monetary sanctions to Defendant in the amount of \$1,500 within 15 business days.
11	25-01529245 <i>Webb vs. Orange County Solar, Contracting Services Inc.</i>	Motion to Compel Arbitration The Motion to Compel Arbitration by Defendants Orange County Solar Contracting Services, Inc. and Vincent Curcie is GRANTED. Plaintiff's objections (ROA 34) are overruled. In the Complaint filed 11/25/25, Plaintiff alleges claims arising from his employment with Defendant between March 2024 – August 2025.